

9:00 AM

Line 4

25-CIV-04080 RUDRA NAND, ET AL VS. BEN MAHABIR, ET AL

RUDRA NAND
BEN MAHABIR, ET AL

W. GEORGE WAILES
TAGHI ASTANEHE

Nominal Defendant Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc.'s Motion to Disqualify George W. Wailes, Esq. and John L. Fitzgerald, Esq. as Attorneys for Plaintiff Rudra Nand Individually and Derivatively on Behalf of Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc and Plaintiff Satish Datt, Individually and Derivatively on Behalf of Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc.

TENTATIVE RULING:

Initially, the Court notes that the moving party nominal Defendant Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc (herein referred to as "Movant" or "Temple") has not provided the complete address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Additionally, Movant's motion lacks any proof of service.

The Motion to Disqualify George W. Wailes, Esq. and John L. Fitzgerald, Esq., Etc. (the "Motion") brought by nominal Defendant Temple is DENIED.

Background

Plaintiffs allege that Defendants, who are three of the five members of the Board of Trustees of the Temple, have taken numerous actions which violate the Temple's bylaws, to the detriment of its reputation and standing in the community, including: improperly refusing membership, secretly admitting new members, and purporting to revoke Plaintiffs' membership; failing to conduct an annual General Meeting and Accounting, and improperly using Temple resources to fund themselves in this lawsuit; and manipulating election results and refusing to recognize the proper vote to remove Defendant Mahabir as a trustee since April 2025.

Through its Motion, the Temple seeks an Order disqualifying George W. Wailes, Esq., and John L. Fitzgerald, Esq. ("Plaintiffs' Counsel") from representing it i.e. the Temple. (Motion, 2:9-10.) While Movant also describes the Order sought as one disqualifying Plaintiffs' Counsel from representing Movant *as well as* from representing the individual Plaintiffs (cf. *id.*, 10:8, & Reply, 8:12-14), the Court rules upon the Motion as noticed (Motion, 2:9-10).

The Court notes, that a prior motion to disqualify Mr. Wailes brought by the individual defendants, was already denied. See, Minute Order filed January 9, 2026.

Governing Law

The governing statute provides that:

Every court shall have the power to do all of the following: ... To control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.

(Code Civ. Proc., § 128, subd. (a)(5).) As the Supreme Court of California explains:

A trial court's authority to disqualify an attorney derives from the power inherent in every court "[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." Ultimately, disqualification motions involve a conflict between the clients' right to counsel of their choice and the need to maintain ethical standards of professional responsibility. The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.

(*People ex rel. Dep't of Corps. v. Speedee Oil Change Sys., Inc.* (1999) 20 Cal.4th 1135, 1145-46 (internal quotations and collected citations omitted).)

In cases of simultaneous, even *potentially* conflicting representations, the primary value at stake is the attorney's duty of loyalty. (*Flatt v. Superior Court* (1994) 9 Cal.4th 275, 284 (*Flatt*).) "[C]ourts and ethical codes alike prohibit an attorney from simultaneously representing two client adversaries, even where the substance of the representations are unrelated." (*Flatt, supra*, 9 Cal.4th 275, 285.) "The paradigmatic instance of such prohibited dual representation—one roundly condemned by courts and commentators alike—occurs where the attorney represents clients whose interests are *directly adverse in the same litigation*." (*Ibid.*, n.3 (emphasis in original).)

Analysis.

The Opposition asserts that Movant's cases actually support denial, in that they emphasize that an attorney may not simultaneously represent a defendant accused of wrongdoing and the nominal defendant entity, which is why this Court has already disqualified Mr. Astanehe from representing the Temple while also representing individual defendants (Order, January 22, 2026, 4:14-17; and Minute Order, November 7, 2025). Here, there are no claims for malfeasance pending against either Plaintiff, and none of the cases Movant cites supports the argument that because Plaintiffs bring this action on behalf of the Temple, their counsel represents the Temple. Instead, Plaintiffs are similarly situated to every other plaintiff bringing a derivative action, so that there is no conflict.

The Mahabir Declaration and the Supplemental Mahabir Declaration in Reply however do accuse Plaintiffs Nand and Datt of wrongdoing against Movant, including forgery in an election to gain control of Movant's Board and funds. However, both declarations are fundamentally problematic.

As to the Mahabir Declaration filed as part of this motion on February 9, 2026 (hereinafter “Mahabir’s 1st Decl.”), Mahabir declares he is the current President of the Temple. Mahabir’s 1st Decl., pg. 8, lines 20-21. He then describes an alleged loan on or about October 10, 2017 by several trustees of the Temple of \$100,000.00 to Alpesh Patel a real estate client of Plaintiff Satish Datt. *Id.* at pg. 8, lines 24-26. The “several trustees” who made the loan are not identified, and by the manner in which it was written, it does not even describe a loan made by the Temple. Mahabir then provides no facts that he was the President on or about October 10, 2017, nor that he was an officer, trustee or some other affiliate of the Temple at that time. Thus, Mahabir provides zero basis that he has any personal knowledge to even attest to the various facts he is claiming, and much if not all of his claims are inadmissible hearsay. The balance of Mahabir’s 1st Decl. suffers from these same fatal defects. Also the Court takes note that while Mahabir’s 1st Decl. is attached to the motion, none of the alleged “facts” are even substantively argued in the initial motion papers.

As to the Mahabir Reply Declaration filed on September 3, 2026 (hereinafter “Mahabir’s 2nd Decl.”), it like the underlying motion, has no Proof of Service. As such, it is impermissible and on that basis the Court is disregarding it. However, were the Court to consider it, then it is also fatally flawed; each numbered paragraph in Mahabir’s 2nd Decl. is described below:

1. Paragraph 1 adds alleged detail to the same claims in Mahabir’s 1st Decl., begging the question as to why it was not providing in the moving papers to allow Plaintiff’s counsel the requisite time to respond. Mahabir still provides zero basis that he has any personal knowledge to attest to the various supplemental facts he is claiming here, and again much if not all is still inadmissible hearsay.
2. Paragraph 2 Mahabir claims he was president on or around November 19, 2025, when he received a notice from the United States Bankruptcy Court, so for this he has personal knowledge. He claims that immediately thereafter the Temple retained David Butler, Jr. to represent it in the bankruptcy proceeding. Nothing herein lends support to the motion.
3. Paragraph 3 generally refers to the dispute that is part of this very litigation, i.e. an active dispute that does not lend support to the motion.
4. Paragraph 4, is an impermissible reference to a potentially privileged settlement communication which the Court will ignore.

Notably, Mahabir’s 2nd Decl. also attaches various exhibits, of which Exhibit B is a relevant example of the flaws in Mahabir’s claims. Exhibit B is an email thread, of a forwarded email from a “Jasmeen” on June 29, 2020 to Plaintiff’s attorney George Wailes. Notably, the section entitled “Primary Concerns and Issues (2017 Loan)” then describes the very same alleged facts in Mahabir’s 1st Decl. See, Mahabir’s 2nd Decl., pg. 10 (Exh. B, 2nd page). In other words, this email from an unknown person named “Jasmeen” which also contains hearsay, appears to indicate that Mahabir’s 1st Decl. is at least, double-hearsay.

As the California Rules of Professional Conduct provide, an attorney shall not without informed, written consent represent a client:

if there is a significant risk the lawyer’s representation of the client will be materially limited by the lawyer’s responsibilities to or relationships with another client, a former client or a third person, or by the lawyer’s own interests.

(Cal. Rules Prof. Conduct, rule 1.7(b).)

Attorney George Wailes is counsel of record for individual Plaintiffs Rudra Nand and Satish Datt, only. There is an inadequate showing that Mr. Wailes representation of these individual Plaintiffs, presents any risk of being limited due to Mr. Wailes past representation of his former client the Temple. Further, the Temple already has independent counsel in David Butler, Jr.

Additionally, there is zero factual basis to bring this motion against attorney John Fitzgerald, who does not appear to have been served with any part of the moving or reply papers and on that basis it is also denied. Mr. Fitzgerald has only appeared as limited scope co-counsel for the individual plaintiffs Rudra Nand and Satish Datt. See, Notice of Limited Scope Representation filed July 31, 2025. Based on the caption of that pleading, Mr. Fitzgerald has his own law firm, with his own unique email and phone number that is completely distinct than that of attorney George Wailes or Mr. Wailes law office. Apparently, they both “rent space on the same floor of an office building, but that does not make them partners.” Opp. Pg. 2, line 16. A shared office space is vastly different than being partners, or being part of the same firm, and is otherwise unremarkable.

Finally, the Court notes that it had previously *required* that the Movant Temple “will have to immediately retain *independent* counsel to appear in this case.” (Order, filed on November 21, 2025, 6:21-22 (emphasis added).) Movant’s papers supporting the Motion indicates that its current counsel David Butler, Jr. already had been chosen during Defendant Mahabir’s presidency to represent it in a bankruptcy case involving Plaintiff Datt’s real-estate client, also in November 2025. (See Mahabir’s 2nd Decl., ¶ 2.) Though the timing is interesting, Mr. Butler is apparently the *independent* counsel retained by the Temple pursuant to the Court’s prior Order. In any event by this motion’s general appearance, the Court deems David Butler, Jr. as counsel of record for the Temple.

In conclusion, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

26-CIV-03853 WILLIE UY VS. INTERSECT ENT, INC.

WILLIE UY
INTERSECT ENT, INC.

JOSHUA S FALAKASSA
CHERYL D. ORR

Defendant's Motion to Compel Arbitration

TENTATIVE RULING:

Defendant Intersect ENT, Inc.'s ("Defendant") unopposed Motion to Compel Arbitration is GRANTED.

Plaintiff Willie Uy ("Plaintiff") brings this action arising out of his former employment with Defendant. The Complaint alleges ten causes of action for discrimination, wrongful termination and other causes of action. Defendant seek to compel arbitration pursuant to the arbitration agreement entered into between Plaintiff and Defendant as part of Plaintiff's employment.

A court shall order the parties to arbitrate a controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that certain exceptions exist. (Code Civ. Proc., § 1281.2.) The party seeking arbitration bears the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754.) If the opposing party then raises a defense to enforcement, the opposing party bears the burden of producing evidence as to any fact necessary to that defense by a preponderance of the evidence. (*Ibid.*) If the opposing party meets the burden of producing sufficient evidence, the third step requires the party seeking arbitration to prove by a preponderance of the evidence that the parties formed a valid contract to arbitrate their dispute. (*Ramirez v. Golden Queen Mining Company, LLC* (2024) 102 Cal.App.5th 821, 830.)

Defendant meets its burden of showing that an agreement to arbitration Plaintiff's claims exists. This initial burden may be met by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature. (*Iyere, supra*, 87 Cal.App.5th at p. 755, citing Cal. Rules of Court, rule 3.1330.) Defendant provides a copy of the arbitration agreement signed by Plaintiff. (Zacharias Decl., Exh. A.) The arbitration agreement is entered into between Plaintiff and Defendant and provides for arbitration of all claims or controversies between the parties, including discrimination, termination and claims for violation of any federal, state, or other governmental law, statute, regulation, or ordinance. (*Ibid.*) Thus, Defendant shows the arbitration agreement encompasses the claims alleged in Plaintiff's Complaint.
